

Opportunity to Compete or Access to Development? Rethinking Educational Equity

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The reigning debate in educational equity—between rival equality and adequacy camps—has not stalled so much as misfired. Typically seen as a debate within distributive justice, it is in fact a debate about distributive justice—about, that is, whether it is even apt to apply norms of distributive equity to educational policy. In other words, the debate is about which of two rival frames of justice should be the controlling one for educational equity: equality of opportunity or distributive equity. Understood this way, what has been framed as a single debate turns out to be three distinct ones, needing to be disentangled. A first debate, internal to equality of opportunity, concerns what constitutes a truly fair competitive process. A second debate, lying within distributive justice, concerns what constitutes truly fair access to development. Finally, a third debate concerns which of these aspirations—ensuring a fair competitive process or fair universal access—should be our controlling aim in educational policy. This last debate, in turn, depends on which of two rival conceptions of K-12 education should be the driver of educational policy: a meritocratic view that takes an instrumental approach to formative education or a democratic view that takes a developmental one. The present article has three aims: (1) first, to unravel the distinct threads of the largely misfired debate between equality and adequacy, so as to pinpoint its three distinct lines of actual contention; (2) second, to take up the case for a developmental rather than positional fairness view as the apt controlling aim for educational equity; and (3) finally, within developmental fairness, to set forth a specific principle of distributive equity as the apt guide for educational policy.

TABLE OF CONTENTS

INTRODUCTION.....	2
I. EDUCATIONAL ACCOMMODATION FOR DISABILITY	4
A. <i>From Nondiscrimination to Distributive Equity</i>	4
B. <i>Justice in the Distribution of Educational Resources</i>	6
1. Equality	6
2. Sufficiency	8
3. Fairness	9
II. EDUCATIONAL EQUITY IN GENERAL.....	12
A. <i>From Opportunity to Compete</i>	13
1. Formal Equality of Opportunity	13
2. Fair Equality of Opportunity	14
3. Full, Fair Equality of Opportunity	14
4. Adequacy of Opportunity	15
B. <i>... to Access to Development</i>	16
1. Equality versus Adequacy: A Misfired Debate	16

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2.	The Three Distinct Debates Disentangled	18
3.	A Cautionary Parable: “Equal Chance to Succeed”	19
III.	THE CORE DEBATE: POSITIONAL VERSUS DEVELOPMENTAL FAIRNESS	21
1.	A Focal Case.....	22
2.	Full, Fair Opportunity to Compete	25
3.	Universal Access to Development.....	29
	CONCLUSION	32

INTRODUCTION

Within educational policy, the central debate concerning educational *equity*—among philosophers, legal scholars, and policymakers—is understood to be between rival “equality” and “adequacy” camps.¹ Equality advocates insist that, as a matter of principle, we should keep striving to ensure that each student has full equality of opportunity, even if, as a matter of practice, we invariably fall short of that aspiration. Proponents of adequacy, on the other hand, suggest that the difficulties in practice point to underlying problems of principle, which counsel scaling back our aspirations and replacing a comparative focus on equality with the more attainable one of at least ensuring that each student has a minimally decent basic opportunity, to realize an adequate level of educational attainment. With each side able to point to its respective merits of principle versus practice, the debate between them seems to have come to a stalemate.²

A central contention of this article, however, is that the debate between these camps has not stalled so much as not yet been properly joined. The contest between equality and adequacy views in educational policy is standardly thought³ to track a larger philosophical debate in distributive justice theory, where “equality” and “sufficiency” are, indeed, prominent rival camps.⁴ But in fact, the debate in educational policy has not been *within* distributive justice so much as *about* distributive justice—about, that is, whether norms of distributive equity are even apt to apply to education. The debate, in other words, has been between rival normative frameworks: “equality of opportunity” *versus* “distributive justice.” Yet not having been clearly seen as such, the debate has so far largely misfired. As opposed to a stand-still, there has been no real joinder of issue.

¹ Leading works on the “equality” side of the debate include Christopher Jencks, *Whom Must We Treat Equally for Educational Opportunity to be Equal?*, 98 ETHICS 518 (1988); William S. Koski & Rob Reich, *When “Adequate” Isn’t: The Retreat from Equity in Educational Law and Policy and Why It Matters*, 56 EMORY L.J. 545 (2006); Harry Brighouse & Adam Swift, *Putting Educational Equality in its Place*, 3 EDUC. FIN. & POL’Y 444 (2008); Harry Brighouse & Adam Swift, *Educational Equality versus Educational Adequacy: A Critique of Anderson and Satz*, 26 J. OF APPLIED PHIL. 117 (2009). Leading works on the “adequacy” side include Goodwin Liu, *Education, Equality, and National Citizenship*, 116 YALE L.J. 330 (2006); Debra Satz, *Equality, Adequacy, and Education for Citizenship* 117 ETHICS 623 (2007); Elizabeth Anderson, *Fair Opportunity in Education: A Democratic Equality Perspective* 117 ETHICS 595 (2007). For helpful reviews of the debate as a whole see Derrick Darby & Richard E. Levy, *Slaying the Inequality Villain in School Finance: Is the Right to Education the Silver Bullet?*, 20 KAN. J. L. & PUB. POL’Y 351 (2011); Joshua Weishart, *Transcending Equality Versus Adequacy*, 66 STAN. L. REV. 477 (2014).

² See Darby & Levy, *supra* note 1; Weishart, *supra* note 1.

³ See, e.g., Koski & Reich, *supra* note 1 at 550-53, 589ff; Weishart, *id.* at 480-82.

⁴ See *infra* note 27 and accompanying text.

To join issue would require seeing that underlying these rival frames, with their distinct orienting commitments of equity, are radically distinct conceptions of the aims of education that should inform educational policy. “Opportunity” views adopt—whether explicitly or implicitly—an *instrumental* conception of K-12 education, as a terrain of competition for grades and other metrics of educational success. This corresponds to their orienting aim for educational equity, namely to ensure a *fair competitive process*. “Distributive” views, on the other hand, adopt a *developmental* conception, one that sees K-12 education as a terrain for forming persons and citizens. Its corresponding aim for educational equity, then, is to ensure *fair universal access* to this developmental good. We may call the first a *meritocratic* view of education, the second a *democratic* one.

Once we identify this as the key point of disjunction, what has been framed as a single debate turns out in fact to be three distinct debates, needing disentangling. A first debate, internal to equality of opportunity, concerns what constitutes a truly fair competitive process. A second debate, lying within distributive justice, concerns what constitutes truly fair universal access to development. Finally, a third debate concerns which of these aspirations—ensuring fair competitive processes or fair universal access—should be our controlling aim, and hence which conception of K-12 education—the instrumental or developmental—should be the driver of educational policy.

The present article has three central aims. The first is to unravel the different threads of the largely misfired debate between equality and adequacy, so as to pinpoint the three distinct lines of contention actually at issue. The second is to take up the case for adopting a developmental conception of education as opposed to its rival instrumental view and, correspondingly, for taking a distributive justice approach to educational equity in contrast to equality of opportunity. Finally, within that distributive frame, it seeks to show that once we fully register the distance between the *procedural* commitments of fair opportunity and the *substantive* commitments of fair distribution, the appeal of both equality and adequacy fade. In their stead, a more persuasive commitment of distributive equity is *fairness*, understood as comparative priority. Making this shift in commitment yields a distinct principle of distributive equity, one that provides better resolutions for the full range of relevant cases than alternative distributive views. It also offers a more compelling overall approach to educational equity than rival opportunity views.

The analysis is structured as follows. Part I takes advantage of a cabined context—educational accommodation for students with disability—to advance a focused version of two claims: First, that educational equity (here for students with disability, but ultimately more generally) requires supplementing the frames of nondiscrimination and equality of opportunity with an analysis of distributive equity. Second, that what distributive equity requires (first in the case of disability, but ultimately more generally) is neither equality nor sufficiency, but *fairness as comparative priority*.⁵ The remainder of the article then generalizes the argument beyond the disability context. Part II disentangles the central debate in educational equity more broadly, that between equality and adequacy views, into its three distinct threads, and evaluates the merits of competing

⁵ These two arguments build on prior work: Talha Syed, *Educational Accommodation and Distributive Equity: The Principle of Proportionate Progress*, 50 CONN. L. REV. 485 (2018).

answers on the first two fronts. Part III then turns to the third, largely missed, arena of contention and confronts the “distributive” view advocated in Part I against the most plausible “opportunity” view emerging from Part II, to make the case for *developmental* over *positional fairness* as our controlling concern in educational policy.

I. EDUCATIONAL ACCOMMODATION FOR DISABILITY⁶

A. From Nondiscrimination to Distributive Equity

Students with disability are entitled, under the *Individuals with Disability Education Act* (IDEA), to a “free and appropriate public education” in the form of an “individualized education program” (IEP).⁷ An IEP should be appropriately tailored to students’ needs and ensure them access to real educational progress, or substantive educational benefits.⁸ But precisely *how much* progress or benefit does the IDEA require? That question has bedeviled courts and commentators ever since the Act’s passage in 1975. For three decades, debate swirled around two equally vague standards, each claiming authority from the Supreme Court’s landmark 1982 decision *Rowley*: one required that students be enabled to realize “some progress,” the other insisted that it be “meaningful progress.”⁹ Then, a little over five years ago, the Court re-entered the fray only to withhold again, by enunciating a new, similarly vague “appropriate progress” standard.¹⁰ Commentators have likewise struggled, many simply siding with one or the other of the vague standards,¹¹ while others—despairing of any substantive resolution—turning their energies toward purely procedural aspects of the decision-making.¹²

Why have all sides been so stumped? The central source of the difficulty is as easy to state as it is to overlook: it is simply unclear what our guiding aim here should be, and in its absence we are bereft of any criteria by which even to identify, much less weigh,

⁶ This Part summarizes in highly compressed form an argument developed at length in Syed, *supra* note 5.

⁷ 20 U.S.C. §§ 1400(d)(1), 1401(3)(A), 1401(9), 1412(a)(1), 1412(a)(4) (2012).

⁸ Bd. of Educ. v. Rowley, 458 U.S. 202, 207 (1982).

⁹ Rowley, 458 U.S. 202 at 184, 200 (1982).

¹⁰ *Endrew v. Douglas Cty. Sch. Dist. Re-1*, 137 S. Ct. 988 (2017). For a review of the circuit split between the “some” and “meaningful” standards prior to *Endrew*, see Syed, *supra* note 5, at 496-500. For an appraisal of the extent to which *Endrew* moves the ball forward, see *id.* at 558-60.

¹¹ Compare Lester Aron, *Too Much or Not Enough: How Have the Circuit Courts Defined a Free Appropriate Public Education After Rowley?*, 39 SUFFOLK U.L. REV. 1, 25 (2005) (embracing the “some benefit” standard), with Cali Cope-Kasten, *Bidding (Fair)well to Due Process: The Need for a Fairer Final Stage in Special Education Dispute Resolution*, 42 J.L. & EDUC. 501, 538 (2013) (viewing the “some benefit” standard as much too low), Scott Goldschmidt, *A New IDEA for Special-Education Law: Resolving the “Appropriate” Educational Benefit Circuit Split and Ensuring a Meaningful Education for Students with Disabilities*, 60 CATH. U.L. REV. 749, 775 (2011) (arguing that “meaningful benefit” is the more appropriate and fair standard), and Scott F. Johnson, *Rowley Forever More? A Call for Clarity and Change*, 41 J.L. & EDUC. 25, 25–26 (2012) (same).

¹² See, e.g., Perry A. Zirkel, *Building an Appropriate Education from Board of Education v. Rowley: Razing the Door and Raising the Floor*, 42 MD. L. REV. 466, 469–70 (1983) (“[T]he bewildering variation among the handicapped . . . def[ies] a single substantive standard and require[s] instead experimentation, variation, and evolution of a multifactor concept of appropriateness.”); Jon Romberg, *The Means Justify the Ends: Structural Due Process in Special Education Law*, 48 HARV. J. LEGIS. 415, 466 (2011) (calling for better “collaboration, individualization and contractualization” in forming IEPs).

the relevant competing concerns. To result in one central concern—that of cost—to remain by and large unarticulated, so as to exercise a powerful but subterranean pull on officials’ decisions, in an inchoate, rather than explicit and deliberative, manner.¹³

A first natural candidate for our guiding aim here would seem to be “equality of opportunity.” Yet this ideal provides little guidance in the present context, once we move past the analysis of nondiscrimination. And the question posed by adequate benefits is simply not well-handled by the standard tools of anti-discrimination law. These tools aim principally to secure similar treatment for similarly-situated individuals, by curbing the role of illegitimate considerations marring formal equality or procedural fairness.¹⁴ But what is at issue in the IDEA setting is precisely that students with disability are *not* similarly situated, so that formally equal treatment—by way of a standard educational plan—fails to accord them substantively fair treatment. What is needed instead is *differential* treatment, tailored to such students’ special needs, by way of individualized educational plans. And in evaluating what sorts of individualized plans are adequate, our principal task is not to ensure that they merely have some kind of “rational basis,” to serve as a final check or filter against any role being played by hidden or even unconscious illegitimate considerations.¹⁵ Rather, our task is to weigh these students’ special needs against the similarly legitimate claims of other students to educational resources, for the sake of securing all students fair access to the benefits of education. Traditional anti-discrimination analysis is without satisfactory criteria to guide us in this respect.¹⁶

¹³ For a sample of the overwhelming majority of judicial opinions evaluating the adequacy of IEP benefits by focusing in isolation on the student with disability—without any mention of the social opportunity costs involved in securing that student access to additional educational benefits, in terms of the foregone potential benefits for other students from the same resources—see *C.B. ex rel. BB v. Special Sch. Dist. No. 1*, 636 F.3d 981, 989 (8th Cir. 2011) (holding that the IEP revolves around the “individualized” educational needs of handicapped child alone); *Petit v. U.S. Dep’t of Educ.*, 675 F.3d 769, 773 (D.C. Cir. 2012) (setting out the responsibilities of IEP Teams for providing services to students with disabilities without any mention of needing to attend to the opportunity costs involved); *D.S. v. Bayonne Bd. of Educ.*, 602 F.3d 553, 557 (3d Cir. 2010) (holding that the IEP is comprised of a student’s abilities, goals for improvement, and services needed to meet these goals, taken in isolation).

¹⁴ More precisely, anti-discrimination analysis in the disability context has undergone four principal stages: (1) *discriminatory intent*; (2) *facial discrimination* irrespective of intent; (3) *discriminatory treatment* irrespective of facial discrimination; and (4) *disparate impact* irrespective of discriminatory treatment. At issue in the first two stages is formal equality, pursued by targeting (1) discriminatory intent in the form of prejudicial attitudes or beliefs, and (2) facial discrimination irrespective of intent, in the form of facially uneven rules or uneven application of impartial rules, even in the absence of explicit bias. The third stage continues the pursuit of procedural concerns by targeting (3) discriminatory treatment irrespective of facial discrimination, so as to ferret out illegitimate considerations (such as implicit or even unconscious bias) that may slip past the filter of facial discrimination, by requiring policies or programs having an uneven impact on those with disability to justify such effects by adducing a legitimate rationale or rational basis for them. The fourth stage shifts to substantive concerns, targeting (4) disparate impact irrespective of discriminatory treatment, whereby even an otherwise legitimate policy or program may be impugned if those devising it fail to give due consideration, in fashioning its rules, to the special circumstances of those with disability. On the present relevance of this fourth stage, see *infra* note 16.

¹⁵ See *id.* (discussing analysis of “discriminatory impact irrespective of facial discrimination”).

¹⁶ This may be thought to give too short a shrift to the “disparate impact” strand of anti-discrimination law. But disparate-impact analysis as it has developed under the aegis of the *Rehabilitation Act* and *Americans with Disabilities Act* sheds little added light here. Indeed, its prescriptions bear striking similarity to the *some* and *meaningful* standards developed in IDEA jurisprudence: here too the courts, lacking any clear

B. Justice in the Distribution of Educational Resources

A first step forward, then, is simply to specify with greater precision our guiding aim here: namely, to provide students with disability not only an opportunity to compete for grades, but also effective access to the benefits of education, benefits understood to be intrinsically valuable to all students, crucial for their formative development as persons and citizens.¹⁷ And at that point our central question becomes clear: what *distribution of educational resources* would provide students with disability *fair access* to *educational development*, taking due account of both their special needs and the legitimate claims of other students? The following section reviews the key contending answers.

1. Equality

A first answer on the tip of many tongues will likely be: an “equal” distribution. But on any of its likely meanings, this answer is ultimately unpersuasive.¹⁸ If by it we mean an equal expenditure of educational resources—as in formal equality of dollar amount per student—then this view simply collapses back into the limitations of anti-discrimination analysis in cases of persons not similarly-situated. Specifically, “equal resources” will counsel either (a) only those adaptations in IEPs that can be fashioned within the expenditure of formally equal resources per student, so as to adapt some pedagogic techniques to special needs, but without provision for any supplementary learning aids requiring extra expenditures; or (b) only those extra expenditures that can be vindicated on “rational” criteria of educational merit¹⁹—meaning where students with disability stand to reap greater marginal improvement in their educational performance than other students would from the same further resources—so as to limit educational accommodation to where it is “efficient.” Neither of these has been taken as adequate by the courts, and for good reason: neither one satisfies the IDEA’s legislative mandate²⁰ nor principled requirements of equitable access, as discussed next.

governing aims, have fallen back on vaguely phrased standards of providing (*some*) “reasonable accommodation” within “manageable bounds,” or ensuring “*meaningful* access” short of “fundamental” alterations to programs and policies. *Alexander v. Choate*, 469 U.S. 287, 299-301 (1985) (emphasis added).

¹⁷ We should highlight, in this regard, two features of the IDEA’s own statutory language. One is that the IDEA—in contrast to the *Rehabilitation Act* and *Americans with Disabilities Act*—eschews all mention of “discrimination” and speaks instead of “the right” of persons with disability “to participate in or contribute to society.” 20 U.S.C. § 1400(c)(1) (2012). Second, the Act emphasizes that to make effective this right to participate and contribute requires meeting the “unique needs” of persons with disability and in this respect the Act underscores the importance of *substantive* gains in education, in terms of securing access to “improve[d] educational *results*.” *Id.* at § 1400(d)(3) (emphasis added).

¹⁸ I should emphasize that the following criticisms are *not* aimed at the adoption of a general commitment toward “equal concern” for all persons (or subjects of a government) but, rather, at “equalizing” interpretations of that commitment in the context of distributive justice. For discussion of “equalizing” interpretations in the context not of distributive justice but of “equality of opportunity,” see Parts II and III.

¹⁹ See note 14, *supra* (discussing “rational basis” analysis under discrimination law).

²⁰ See note 17, *supra* (reviewing the IDEA’s statutory mandate).

Alternatively, if by “equal” we mean whatever resource distribution would “equalize access” to educational development,²¹ this also fails, although now for entirely different reasons. Aiming to equalize access to educational development may mean one of two things here: either (a) we seek to ensure all students can attain the same level of educational development, despite their different starting points; or (b) failing that, we at least seek to ensure that those who worse off are able to maximize their educational development. Neither of these is feasible, nor—what is more important here—equitable.

As for the first, gaps in starting positions may be large enough to make all attempts to equalize development unavailing, absent “leveling down” whereby those doing better are not only left without any aid but positively hindered in their development—clearly undesirable.²² Shrinking from that unattractive implication, advocates of the latter view propose that we should at least maximally improve the position of the worse off, even if that still falls short of full equality. But not only would this be an extraordinarily expensive endeavor, in principle it may be one without limit: for some students with severe enough disability (or other disadvantages), we might be able continually to devote resources to their improvement without ever bringing them up to the level of others, which others would then be left without any resources for development of their own (albeit no longer affirmatively hindered in said development).

And the real problem with this position is not that it is somehow “impractical” but simply that it is *unfair*: to call this endeavor “expensive” is really to say that it involves high social opportunity costs, of foregone access to educational development for other students. And to fail even to consider such opportunity costs for others, by focusing single-mindedly on improving the lot of the worse off, is simply unfair. Or at least it is unfair absent some compelling reason for such single-minded devotion. And the only reason at play here is the same one underlying the first position: the value of equality, with the difference between the two being that in the former this value is taken to be over-riding while in the latter it may be checked against the desire to avoid leveling-down, so as to allow residual inequalities. But not only does equality not have over-riding value but—what is the key point—in the present context it *has no value at all*. Once we shift from procedural concerns of ensuring nondiscriminatory treatment or a fair competitive process, to the substantive one of ensuring access to a benefit—educational development as valuable in itself—there simply is no value to equalizing such development, as if achieving “sameness” in outcomes is of some intrinsic importance. It is not.

The fundamental trouble with this position, then, may be stated as follows: it involves an illicit migration of the value of equality from procedural matters—where it is entirely apt—to a substantive realm, where it is not.²³ To ground our special concern for

²¹ Inserting “access” between “equalizing” and “educational development” is meant to signal that this view can take into account considerations of individual responsibility in determining ultimate outcomes.

²² Cite Parfit. Make point that he distinguishes between this and leximin. And make the point that neither of these is what Rawls had in mind.

²³ It is important to be clear about what is *not* being said here. It is *not* being said that there is no value to giving priority to the worse off in access to educational development; only that such priority should not be grounded on a commitment to equalizing as valuable in itself. Momentarily, we will adduce two other, very distinct grounds, upon which to base such priority, and give reasons for embracing one over the other.

students with disability—i.e., the priority that they are to be accorded in access to educational resources—in equalizing as a value is to misorient the analysis from the get-go, leading to a tangle of untenable practical implications. The solution is not to check against that commitment with various other, ad-hoc, considerations, but to jettison that that orientation at the outset and replace it with another.

2. Sufficiency

Stepping into the vacuum left by equality's departure is the main alternative, of "sufficiency": what matters is not that all have *the same*, but that each has *enough*.²⁴ Instead of aiming to achieve equality in educational development, our focus should be on ensuring that all students are enabled to reach some decent basic level of educational development, irrespective of what level others are able to reach. For purposes of the IDEA, this means that students with disability should receive strong or absolute priority in access to educational resources so long as they remain below the specified level of sufficient or adequate development, and no priority at all once they pass above it.

The difficulty lies, of course, in specifying what is "enough"—i.e., what is an adequate threshold level. Any truly decent threshold may well be too high to be reached by many students with significant disability (or reachable only at exorbitant cost), while any broadly attainable level will likely be too low to satisfy us that upon meeting it, we need show no further special concern for those with disability. In other words a robust adequacy standard will tend to be over-inclusive, while a modest one under-inclusive. And in no case will *any* adequacy standard provide guidance on how to deal with resource trade-offs among those students who are *all* below or above the threshold—this being a second set of difficulties that would remain even if we somehow resolved the first.²⁵

At the root of all these difficulties is this view's underlying commitment regarding what matters in questions of distribution: eschewing equality's focus on sameness, sufficiency attempts to specify a level of decency on some objective or absolute basis, independent of the level attainable by others. But while a focus on some independent

Moreover, it is *not* being said that there is no value to equality in other contexts—be it procedural or political or social—but only that in matters of distribution, what is of value is not *sameness* but, rather, *fairness* (as spelled out shortly). Finally, it is *not* being said that equality may have not *instrumental* value in matters of distribution—owing to the effect of relative positions on, say, purchasing power or status envy or positional goods—but only that it does not have any intrinsic value, so that it makes no sense to seek sameness in outcomes as an aim at all, even as a tentative default or starting position. Whether there are any instrumental reasons to value equalizing educational development is a point to which we return in III.3, *infra*.

²⁴ See Harry Frankfurt, *Equality as a Moral Ideal*, 98 ETHICS 21, 21–22 (1987).

²⁵ That is, the adequacy view counsels that *across* the threshold, students below should get absolute priority over those above, but it provides no guidance for how to prioritize either *under* or *above* the threshold. The problem with the latter is plain. The former meanwhile leads to the problem, again, of a single-minded focus on improving the lot of some (now those "badly off" rather than "worse off") without any consideration of the opportunity costs for others—with the difference that such absolute priority is now grounded not in a concern for equality but in a concern for ensuring a level of decency for all. When that single-minded concern proves prohibitively costly, it will likely lead to ad-hoc adjustments downward, now to result in under-provisioning of others who still have a strong claim for priority despite passing this lowered threshold (a claim based in *fairness*, not *equality* or *decency*, as explained next).

level of decency is initially more plausible than the valuing of sameness, it finally proves untenable as well, because ultimately what is decent is relative to what is possible for others. In other words, the sufficiency view fails to give proper recognition to the fact that distributive justice, like *all* questions of justice, is irreducibly relational in character. Consequently, our question is what is decent not in the abstract, or in some absolute sense, but only relative to what is possible for others—hence, to what is *fair*.

3. Fairness

What, then, is fair? That those who are worse off than others through no fault of their own be given special concern *because* they are worse off and—accordingly—to *the extent that* they are so worse off. The reason students with disability are owed priority is not because we wish to equalize their development with others, nor simply to bring them up to some independent standard of adequacy, but rather because educational gains for them, or improvements in their development, have greater moral significance the lower their starting levels are compared to others. Why? Because that is what speaks directly to the question of fairness, of what it is reasonable to ask separate persons, leading distinct lives, to require and accept from one another. In deciding between two potential recipients of resources, it is only reasonable that one whose life is already going better accept that improvements for the other matter more—are of greater significance or urgency—simply and precisely because they would be improvements to a life that is going less well.²⁶ And this holds even though equalizing across them would in itself be of no value.

Our focus, then, should be neither on equality for the sake of sameness nor on adequacy for the sake of decency, but on *priority* for the sake of *fairness*. Corresponding to this shift in the basis for our concern is a change in its character: as opposed to giving students with disability absolute priority—as counseled in their different ways by equality and adequacy—that priority is now a matter of degree, being a function of *how much* worse off such students are relative to others. In other words, clarifying the reason for our special concern sheds new light on determining its extent, or how much priority is warranted: since students with disability are given priority because they are worse off, they are to be given priority to the extent that they are worse off. They are to be given, in other words, *comparative priority*: students' claims on educational resources are greater the worse off they are compared to other potential recipients.

This insistence on the intrinsic significance of comparative levels—of some persons being *worse off* than others, rather than simply *badly off* in some absolute sense—distinguishes this comparative priority view not only from equality and sufficiency views but also from *non-comparative* priority views that seek to generalize the sufficiency position.²⁷ The present view thus differs from each of the three of the positions—equality, sufficiency, and non-comparative priority—commonly thought to exhaust our options for

²⁶ Bracketing here responsibility considerations, so that neither party deserves being better or worse off.

²⁷ See Derek Parfit, *Equality of Priority? Lindley Lecture 25* (1991) (advancing non-comparative priority as a “more general version” of the “sufficiency view,” so that greater concern for benefiting people exists when “these people are at a lower absolute level,” not because “these people are worse off *than others*”) (emphasis in original).

ultimate distributive commitments.²⁸ By delinking a concern with comparative levels from any focus on equality, it marks out a distinct option in conceptual space from those presently prevailing. On the standard view, a concern for comparative levels issues in a concern for equality, while a rejection of equality means a rejection of any concern with comparative levels.²⁹ By contrast, the present view argues that, *pace* equality views, there is no inherent value to equalizing for its own sake, while also arguing, *pace* sufficiency and non-comparative views, that this does not mean comparative levels retain no intrinsic value—they do, only now on the ground of fairness, not equalizing.

Making this shift in our deepest underlying commitments of distributive equity results, at the surface, in a distinctive principle of distributive justice: the *principle of proportionate priority* (PPP). Students with disability are to receive priority in access to educational resources so long as: (a) the progress such resources would enable them to realize would be, as a proportion of their existing levels of development, greater than or equal to (b) the progress such resources would enable alternative recipients to realize, as a proportion of their existing levels of development. Under the principle, those at comparatively lower levels are given greater priority, which priority is applied to comparative potentials for improvement. Where the two factors—of *comparative priority* and *comparative potential*—dovetail, the recipient is given especially strong priority.

In one fell swoop, then, the PPP integrates in a comprehensive and principled way all the relevant concerns posed by disability accommodation, systematically addressing them internal to its own guiding commitments. In contrast to the existing alternatives—each of which focus one-sidedly on *either* overall levels of educational development or potentials for improvement—the PPP organically considers both. As a result, it neither unduly sidelines considerations of cost, as do those approaches focused single-mindedly on ensuring equalized or adequate levels of development,³⁰ nor unduly sidelines considerations of equity, as do those approaches focused single-mindedly on equalizing

²⁸ Or, more precisely, for distributive commitments at the “egalitarian” end of the spectrum—there remain maximizing views at the other end.

²⁹ For representative statements of the standard view, see G.A. COHEN, ON THE CURRENCY OF EGALITARIAN JUSTICE AND OTHER ESSAYS 69ff (Michael Otsuka ed., 2011) (“egalitarians think inequality is intrinsically bad or wrong, and prioritarrians do not”; the latter are concerned only with “priority to the worst off,” making “comparativity strictly irrelevant” so that “distributive patterns are of no *intrinsic* interest”) (emphasis in original); Dan Brock, *Priority to the Worse Off in Health Care Resource Prioritization*, in MEDICINE AND SOCIAL JUSTICE: ESSAYS ON THE DISTRIBUTION OF HEALTH CARE 155 (Roades et. al eds., 2012) (“Prioritarrians are concerned with the absolute position of the worse off. A concern for equality, on the other hand, is concerned with people’s position relative to others in some respect and that they be equal in that respect.”); Marc Fleurbaey, *Equality Versus Priority: How Relevant Is the Distinction?*, 31 ECON. & PHIL. 203 (2015) (framing the debate on first principles as between equality and non-comparative priority); Daniel Hausman, *Equality Versus Priority: A Misleading Distinction*, 31 ECON & PHIL. 228 (2015) (same).

³⁰ To recall, the problem with the absolute priority accorded by equality and adequacy views was that in their single-minded focus on the worse off (for equality) or those under a decent threshold (for adequacy), they simply ignore the claims of others, failing to give any regard to their opportunity costs. Comparative priority, by contrast, *always* takes into account such opportunity costs—since the priority is never absolute—and always in a *principled* way—since the priority is a direct function of the gap in comparative levels between respective recipients (i.e., how well they are already doing) and applied to comparative potentials for improvement (i.e., how much each stands to gain).

or maximizing improvements.³¹ And this is not some ad-hoc or jerry-rigged feature of this approach, but rather one that directly flows out of its guiding commitments: once we understand that priority is owed to those worse off in accord with how much worse off they are, we automatically integrate concerns of equity (via comparative priority) with those of costs (via comparative potential) into an analysis of *equitable opportunity cost*.

Finally, pursuit of “proportionate” progress also addresses the key concerns animating those courts adopting the alternative legal standards of “some progress,” “meaningful progress,” or “appropriate progress”—while correcting for each of their respective gaps. Minimalist “some progress” courts emphasize the severity of certain disabilities as a reason to shy away from any more demanding approach.³² The present analysis reveals that such courts are right to highlight the impact that severe disability may have on students’ comparative potential: where a severe disability prevents a student from making much progress even at great expense, this is indeed a relevant factor weighing against the expenditure. But they are wrong to ignore the impact of severity on these students’ comparative priority: the more severe the disability, the worse off the student, and hence the more urgent our concern. The more demanding “meaningful progress” courts often emphasize the inadequacy of a minimal standard for those students with disability showing great potential.³³ The present analysis agrees with that emphasis on comparative potential, but tempers it with a reminder that we must also always factor in comparative priority, or existing overall levels—lest a focus on the high potential of some serve to license undue disregard for the needs of others. Finally, in delivering its new “appropriate progress” standard, the Supreme Court declared that what is “appropriate” is a matter of what is “reasonable” in “light of the child’s circumstances.”³⁴ But the Court declined to specify with any precision how students’ diverse circumstances should “reasonably” be factored in, while its general discussion of the matter repeated the inapt tendency of courts past to analyze the adequacy of IEP benefits for a student in isolation.³⁵ Proportionate progress steps in to fill that gap—and correct that tendency—by specifying a view of what is reasonable in terms of what is *fair across students*, so that “appropriateness” is determined by looking to *two sets of comparative circumstances*: how well each student is already faring and by how much each stands to improve.

³¹ These “equal progress” and “efficient progress” views are criticized in Syed, *supra* note 5 at 530-32. In brief, to attempt to equalize improvements suffers from both the under- and over-inclusive approaches afflicting adequacy views but now in exacerbated form: it is over-inclusive in its failure to consider the extremely high opportunity costs of equalizing added improvements across students in cases of severe disability (or low comparative potential), and under-inclusive in failing to consider the overall levels (or comparative priority) of the students whose gains are equalized. Meanwhile, seeking to maximize improvements across all students, irrespective of their overall levels, is to fall prey to the one-sided focus of efficiency analysis on marginal potentials with no consideration of the equities of the resulting overall levels—a result tending to dovetail with that of “rational basis” anti-discrimination discussed in note 14.

³² See, e.g., Hall ex rel. Hall v. Vance Cty. Bd. of Educ., 774 F.2d 629, 636 (1985) (suggesting that minimal results are acceptable for the most severely handicapped children).

³³ See, e.g., Polk v. Cent. Susquehanna Intermediate Unit 16, 853 F.2d 171, 182 (3rd Cir. 1986) (where a student displays considerable intellectual potential there must be “a great deal more than a negligible” benefit provided).

³⁴ Endrew, 137 S. Ct. 988, 992 (2017).

³⁵ See note 13, *supra* and accompanying text.

In sum, distributive equity requires neither equality nor adequacy, but fairness as a matter of comparative priority. Effecting this fundamental shift in our deepest underlying commitments issues, on the surface, in a distinctive principle of distributive justice: the principle of proportionate priority. This principle provides persuasive and systematic guidance—explicit, reasoned, and comprehensive—in resolving the questions of resource prioritization raised by educational accommodation for disability.³⁶

II. EDUCATIONAL EQUITY IN GENERAL

Should the two-fold argument just given for the case of students with disability—namely that (1) we need to shift our frame from nondiscrimination to distributive equity and (2) within that frame, to jettison both equality and adequacy in favor of comparative priority—extend beyond disability accommodation, so as to apply to educational equity more generally? So as to accord proportionate priority in the expenditure of educational resources to the needs of any students educationally worse off as a result of unchosen barriers to educational development (be it owing to income or other factors)?³⁷ Yes.

But extending the argument in this way also brings out with greater clarity and force its controversial and transformative character, in terms of the reorientation it calls for in our conception of education and the aims of educational policy. To see why, consider that in its generalized form the argument calls for the following two-fold shift: (1) away from “equality of opportunity” and toward distributive equity; and (2) within distributive equity, neither equality nor adequacy but comparative priority. It is in fact the first rather than the second of these two shifts—i.e., the move *away* from equality of opportunity, rather than *toward* comparative priority—that is likely to prove the more controversial in the context of general educational policy.

Indeed, appreciating that these are *two distinct shifts* allows us to see something that is at present somewhat obscured in the literature on educational equity. In that literature, the central debate is presently framed as a contest between rival “equality” and “adequacy” camps,³⁸ one ostensibly lying *within* distributive equity, concerning how best to ensure equitable access to education for all.³⁹ Precisely the same debate, that is, as that just summarized in Part I.B., and calling for the same resolution, namely abandoning both positions in favor of comparative priority as a matter of fairness. But, alas, that would be too quick—because that inherited framing of the debate is rather misleading.

³⁶ To be sure, this only scratches the surface of the issues posed by distributive equity in the case of educational accommodation for disability. Among the complexities that need to be taken up are those raised by cases of “gifted” students with disability, and by comparisons across distinct areas of skills and learning. For treatment of these, see Syed, *supra* note 5 at Part III. Also taken up there is how proportionate priority—as a new *principle* of distributive equity—may apply to different candidate *metrics* or *spaces* of distributive concern (this latter going to a distinct debate within distributive justice theory, featuring *welfare*, *resources*, and *capabilities* as the primary rival views).

³⁷ More precisely, it would target for distributive redress those barriers to educational development that are not already removed as per-se “illegitimate” under anti-discrimination analysis.

³⁸ See references cited in note 1, *supra*.

³⁹ See Koski & Reich, *id.* at 550-53, 589ff; Weishart, *id.* at 480-82.

In fact, the debate between the “equality” and “adequacy” camps is *not* a debate between competing positions *within* distributive equity, but rather a debate about whether educational policy should be *reoriented* toward distributive equity, or remain within a radically distinct frame, of “equality of opportunity.” That is, advocates of “equality” are *not* calling for equality of educational development but, rather, for a *fully fair*—or “equal”—opportunity for all to compete for grades and other metrics of educational success.⁴⁰ They are calling, in other words, for a fully “equal” as in “level” playing field. Meanwhile the advocates of “adequacy” are not arguing for ensuring a merely “adequate” playing field or competitive process—in contrast to the “fully fair” one of their ostensible opponents—so much as for a basic shift in focus, away from an “opportunity to compete” and toward an “opportunity to develop.” Only within that completely different frame does the call for an adequate level of educational development make any sense.⁴¹

The debate, then, between “equality” and “adequacy” is *neither* one between competing views on what is a “fair opportunity to compete,” *nor* one between competing views on what is a “fair opportunity to develop.” Rather, it is really about which of two competing, radically distinct conceptions of education we should adopt: (1) an *instrumental* conception, that sees K-12 education as a terrain of competition for grades and other metrics of educational success, with the corresponding aim of educational policy being to ensure a *fair competitive process*; or (2) a *developmental* conception, that sees K-12 education as a terrain of forming persons and citizens, with the corresponding aim of educational policy being to ensure *fair universal access* to this developmental good. That this is the real bone of contention has been often missed by both sides—to the point that it is misleading even to call it a “debate” given the misfiring as to the real issue.

In order to address this central point of contention, we first need to disentangle the three distinct lines of argument that it implicates. This is the task of the present Part, which traces how the present debate has misfired by unraveling its distinct central threads (II.A) and then disentangling these so as to properly pose the three distinct questions that have so far remained jumbled (II.B). Part III then turns to address the central question that emerges from this analysis, which is whether our controlling aim in educational policy should be *developmental fairness*, in accord with proportionate priority, or *positional fairness*, in accord with full, fair equality of opportunity.

A. From Opportunity to Compete ...

The central dialectic in this area unfolds in four key stages, whereby each of the subsequent positions discloses a new, distinct and important, normative commitment over its predecessor: (a) *formal* equality of opportunity; (b) *fair* equality of opportunity; (c) *full, fair* equality of opportunity; and (d) *adequacy* of opportunity.

1. Formal Equality of Opportunity

⁴⁰ See, e.g., Jencks, *supra* note 1; Brighthouse & Swift (2008), *supra* note 1.

⁴¹ See, e.g., Liu, *supra* note 1; Anderson, *supra* note 1. See also Elizabeth Anderson, *What Is the Point of Equality?*, 109 ETHICS 287 (1999).

A basic commitment of liberal society is, of course, to fair process, in at least the minimal sense of ensuring “formal equality,” or nondiscrimination in access to education. What is meant by nondiscrimination is to ferret out the role of “illegitimate” factors that mar procedural fairness, be they irrational beliefs or invidious attitudes.⁴² Irrational are those beliefs not having any basis in a consideration of merit of some sort, while invidious are those attitudes that evince unreasonable preferences, ones running afoul the ground rules of liberal political morality, by denying some persons equal standing or dignity.

2. Fair Equality of Opportunity

Going beyond the mere removal of discriminatory barriers, to the actual provision of resources, is a major step across the rubicon: from merely formal equality to truly fair “equality of opportunity.” Once, that is, we go beyond the removal of illegitimate factors to the affirmative provision of enabling conditions, we are truly in the land of liberal opportunity. Here is the central distinguishing commitment of liberal society: as opposed to the *ancien regime*, you are not what your parents were, you do not have to share in their fate. The beacon of liberal society is not simply “a career open to talents” in the minimal sense of removing artificial (non-meritorious or illiberal) barriers, but rather real “equality of opportunity,” making inroads on parentally transmitted (dis)advantages.⁴³ Its most basic component is assistance to children from disadvantaged families, paid out of the public chest—i.e., mandatory and publicly-funded K-12 education.

3. Full, Fair Equality of Opportunity

Taking a further step, indeed perhaps a giant leap, in the same direction, we reach the conclusion: if *A* does not *have to* share in their parents’ fates, then this might well require that *B* does not *get to* share in theirs. That is, it is not simply enough to provide some “basic floor” of opportunity via publicly-funded education; rather, we must take seriously the need to really “level the playing field” by having public schools match both each other and their private cousins. The *only* permissible sources of difference in educational results are “talent and motivation.” The test of whether we are realizing *real* equality of opportunity is whether a child born in a poor family but with the same ability and striving as one born in a rich one has truly the same chances for educational success (e.g., grades, entrance to college) as the other.⁴⁴ This requires, at the least, that we equalize educational expenditures per student both within public schools and also between them and their private alternatives. And it might even require going further, so as to equalize extra-curricular educational expenditures, so that whatever is spent by rich families on their children’s math, music etc. lessons is matched for poor kids by the public purse.

⁴² See *supra* note 14.

⁴³ See, e.g., Bernard Williams, *The Idea of Equality*, in PHILOSOPHY, POLITICS AND SOCIETY 110 (Peter Laslett & W.G. Runciman, eds., 1962).

⁴⁴ JAMES S. FISHKIN, JUSTICE, EQUAL OPPORTUNITY, AND THE FAMILY 33-35 (1983); James S. Fishkin, *Do We Need a Systematic Theory of Equal Opportunity?*, in EQUAL OPPORTUNITY 15, 18 (Norman E. Bowie, ed., 1988); Brighouse & Swift (2007), *supra* note 1.

At this stage we come to a crucial fork in the road. Each of the two subsequent positions are markedly distinct from any of the foregoing, but their distinctiveness has so far passed without much notice. A first position is the “adequacy of opportunity” view: this seems simply to continue in the same vein as the foregoing opportunity views, but in fact involves a fundamental pivot, away from “opportunity to compete” and toward “opportunity to develop.” A second position is a quasi-“luck egalitarian” view: this, by contrast, *seems* to mark a fundamental shift away from equality of opportunity and toward distributive equity, but in fact it remains fully within the grip of “opportunity to compete.”

4. Adequacy of Opportunity

The aim of full, fair equality of opportunity strikes many as not just infeasible but unattractive. Underlying that judgement is a mix of three views: (1) it countenances an infeasible “arms race,” with strapped public funding chasing, Sisyphus-like, the expenditures lavished by the affluent on their offspring; (2) a chase not only untenable but somehow off-putting, in its zealous pursuit of a kind of “flattening” of opportunity; (3) especially when we consider the incursions into “parental liberty” that are involved in such efforts. To use a prominent example featuring in the debate: are we really to say that educational equity remains unsatisfied so long as the per-student expenditures at Palo Alto High School (“one of the best public high schools in the country by any conventional measure”) are outstripped by those at “the famous and private” Choate Rosemary Hall in Connecticut (with “better teachers, a stronger curriculum”)?⁴⁵

What is the alternative? To give up the chase and seek to achieve not equality but “adequacy” of educational opportunity for all students, by ensuring that each student has access to some minimal robust level of educational attainment, above which inequalities need not bother us. The defects of this as a view of distributive equity may be briefly rehearsed, but then put aside as presently irrelevant: any plausibly decent basic threshold will not be equitably (or even perhaps possibly) reached by all students, while any threshold reachable by all will simply be too low to satisfy us that, upon its attainment, not only basic decency but also justice is met. And in both cases the underlying difficulty is the same: the attempt to specify for each student an absolute, all-or-nothing threshold level, independent of how others are faring, fails because distributive justice is an inherently relational matter, requiring—at its constitutive core—comparative judgments which, as such, will always be gradient not binary.⁴⁶

Presently, however, what matters is not to dwell on the defects of this view as a position within distributive justice, but instead to see that it *is* indeed a position *within* distributive justice. What seems to have been missed by all sides to this debate—pro-equality, pro-adequacy and judicious compromisers, all—is the *fundamental shift marked by this turn toward adequacy*. We are no longer in the land of “opportunity to compete,”

⁴⁵ Koski & Reich, *supra* note 1, at 592. Interestingly, Koski and Reich pose this example in the course of advocating for “equality” against “adequacy.” However, they pull back from the implications of their view in cases like this, in a way that is telling for the overall strength of their position. See discussion below at *infra* note 61 and accompanying text.

⁴⁶ See discussion above at I.B.2, *supra*.

with different versions targeting the removal of different barriers, yet all united in their underlying aim of ensuring a properly fair process of zero-sum competition for grades and other metrics of educational success. Rather, we have altogether left it for the sake of ensuring “opportunity to develop”: the provision of resources aimed at ensuring all fair access to a substantive benefit, educational development seen as valuable in itself.

B. ... to Access to Development

1. Equality versus Adequacy: A Misfired Debate

This fundamental pivot in the debate has been missed by both sides, as can be seen by the key criticism each lobbs at the other. Critics of adequacy argue that it fails to take seriously the “positional disadvantage” of a student who, while well above the threshold level of basic attainments, still has access to fewer resources than a rival even more generously provisioned.⁴⁷ In the case of this rival, the objection runs, the first student still has a legitimate ground of complaint: despite being given a sufficient opportunity to compete, her rival still has an unfair edge in the race for prizes. But what this criticism fails to see is that the adequacy view involves a fundamental shift in the basic aim of educational policy: rather than fairly position students in the race for grades, our aim now is to fairly equip them for self-development, as persons and citizens.

Yet even the advocates of the adequacy view seem not to have fully registered the point, which explains why they continue to speak of “adequacy of opportunity.” But the notion of a “sufficient opportunity to compete”—as just invoked in the objection canvassed—is scarcely coherent or intelligible. Sufficiency, as a view within distributive justice, involves the specification of some absolute or non-comparative decent threshold of substantive benefits, against which existing levels are judged adequate or not. But the notion of “opportunity to compete” is an inherently relational—indeed, zero-sum—one. A competitive process can be more or less fair, in terms of its rules and starting positions, but one scarcely knows what it would mean to say that it is more or less “sufficient.”⁴⁸

What advocates of adequacy must really have in mind, then, is *not* “adequacy of opportunity” to compete, but “adequacy of opportunity” *to develop*. Yet the lingering use of “opportunity” language in formulating the view has obscured the radical character of the conceptual shift involved in its move away from its predecessor and rival. We would

⁴⁷ See Koski & Reich, *supra* note 1 at 596ff; Darby & Levy, *supra* note 1 at 368; Weishart, *supra* note 1 at 482, 525.

⁴⁸ This can be seen as a mirror-image of the problem facing “equality” views within distributive justice. There, the problem was the illicit migration of a procedural norm to substantive matters of distribution. See *supra* note 23 and accompanying text. Here, the problem is the illicit yoking of a substantive norm onto matters of procedural fairness. This is not to say, I hasten to add, that the norms of equality or adequacy are in fact the right ones to apply within their respective domains. Indeed, as argued in I.B.2. above, for substantive matters the apt norm is not adequacy (nor equality of course), but fairness. And as argued below, the same applies for procedural matters: even here the apt norm is ultimately not equality, but again fairness, though now of a very different sort. But the present point is that whether or not these criticisms of adequacy and equality in their respective domains are accepted, these domains are, indeed, their apt areas of application and the migration of each norm from its proper domain to the other runs aground as incoherent.

do well to mark out this conceptual shift more sharply in language: *not* from “opportunity to compete” to “opportunity to develop,” but, rather, to “*access* to development.”

To be sure, critics of adequacy may still maintain the nub of their objection, now shorn of its mis-formulation: it remains the case, says the critic, that advocates of sufficiency fail properly to take into account the competitive or positional character of educational goods. In other words, says the critic, the fundamental shift in the aim of educational policy that underlies the adequacy view is simply misplaced: our focus should remain on ensuring students are fairly positioned in the race for grades (whether that should be our sole focus, primary focus or simply an additional aim to that of enabling development is unclear). We will turn to the merits of this criticism shortly. Presently, however, what needs pointing out are similar confusions on the other side of the debate.

Against the equality view, the central criticism raised of course is the “leveling down” objection: a zealous pursuit of equality for its own sake may counsel lowering the level of the better off without any offsetting gains for others, simply for the sake of greater equality.⁴⁹ Yet this objection only has force within the frame of distributive equity, where intrinsically valuable substantive benefits of some sort are being disposed, in which case substantive losses for some, without any corresponding substantive gains for others, seem clearly undesirable. But within the frame of “opportunity to compete,” the objection loses all traction: Yes, of course full-throated pursuit of a “fully fair” or “level” playing field may well require not only adding assistance to those disadvantaged in the race, but also removing aids to those already unfairly advantaged. But being unfair, the removal of such advantages should hardly be seen as a loss and certainly not a concern, especially when we factor in that—given the inherently zero-sum character of the case—a loss of unfair advantage for some will necessarily mean a gain in fair advantage for others. Simply put, there is no such thing as “leveling down” in the case of “opportunity to compete,” only a “leveling *of* the race,” done for the sake of fairness, not equality.

But, as with the adequacy view, so too advocates of equality have themselves not fully registered the point. For them to speak of an *equal* “opportunity to compete” is really a misnomer: the actual commitment is to a (fully) *fair* “opportunity to compete” or, put simply, to a fully fair competitive process. And within that frame, to object against a “flattening equality” is simply not cogent: the aim is not to ensure a “flat” competitive process but a *fair* one. In other words, of the three sources of resistance to the “fully, fair” view canvassed above—i.e., its infeasible demands on the public purse, the unattractively “flattening” character of its commitments, and its troubling incursions into parental liberty—only the first and third retain any force. This is because second evinces a misunderstanding of the aim of educational policy and equity on this view: *if* education is to be viewed instrumentally, as the means for “getting ahead” in life, then to object to overzeal in ensuring the race is fair, on the grounds that it has an off-putting effect on those given an unfair leg up, is somewhat bizarre. Such an objection only makes sense on an alternative, intrinsic, view of education as a good of self-development (to which all should be given fair access). But on the instrumental view of it, as the terrain of a race, it loses all force—*of course* all should be fairly positioned.

⁴⁹ See Parfit, *supra* note 27; Koski & Reich, *supra* note 1 at 591.

Now here, too, a critic of equality may seek to retain the nub of their objection by recasting it in a more acceptable form: what advocates of equality fail to understand, says the critic, is that education is not merely instrumental, with its gains purely zero-sum or positional. Rather, education also has intrinsic benefits for each student independently of what happens to others, and so any zealous pursuit of fairness in the race that countenances reducing some of the positional “advantages” of those with a leg up also, problematically, countenances removing some of their intrinsic “benefits.” And in reverse parallel with the equality-critic of adequacy, here too it is unclear whether the adequacy-critic of equality means to be rejecting the instrumental view of education *tout court* or simply urging a mixed view. Either way, its substantive merits will be considered shortly.

What presently needs to be emphasized is that both sides in this central debate betray, in the key criticism they make of the other, a fundamental misunderstanding of the basic premises of the rival view. Even more, in their responses to the criticism, the defenders of each view seem to betray similar misunderstandings of their own position. Critics of “equality” misconstrue as a demand for “equalization” what is really advocacy for a *fully fair* competitive process. While critics of “adequacy” fail to see that it counsels *not* an adequate “opportunity to compete” but adequate *access to development*. Defenders of full, fair opportunity, for their part, when faced with the leveling down objection should not, as they do, concede its force but then offer mitigations or concessions, but rather simply deny that it has any traction in the first place. And similarly for proponents of adequacy: to the charge that they fail to fully equalize the competitive process, the right response is not “we do so sufficiently,” but rather: “that is simply not our focus.” Neither side, then, seems fully to appreciate the distinct character of its underlying conception of education and the radical gulf that separates it from the other “side” in this respect.

2. The Three Distinct Debates Disentangled

To reiterate, the debate between equality and adequacy views has misfired from the get-go. There simply is no debate between these views on the same terrain. Rather the debate is *about* the appropriate terrain. Overlooked in their long-standing tussle is that these views are simply not rival interpretations of a shared normative framework at all, but rather positions across rival normative frameworks, which radically diverge in how they conceive the ends of education and hence the aims of educational policy. “Equality” advocates are arguing *within* the framework of *opportunity to compete*: this takes an instrumental “race for grades” view of the end of education and the aim of educational equity to be ensuring a fair competitive process. “Adequacy” advocates are arguing *within* the framework of *distributive equity*: this takes an intrinsic “development” view of the end of education and the aim of educational equity to be ensuring fair access to that good.

Within each frame there can of course be robust debate, over what constitutes a fair competitive process (formal, fair, or full fair equality of opportunity) or fair access to development (equality, adequacy, comparative priority). But the debate between these ostensible “camps” is taking place *across* the frames. It is not within the first frame: no one is arguing for a *sufficient opportunity to compete*, because that is scarcely intelligible.

It is also not within the second frame: no one is arguing for *equalized access to development*, because while now intelligible it remains a basically misguided aim. Rather, the debate is between, on the one hand, *full, fair opportunity to compete* and, on the other, *adequate access to development*. And that debate is as much or more about the right normative framework to apply to education—fair process or substantive equity—than it is about the right position to take up within the relevant framework.

Put another way, the shift toward “access to development” that is wrought (albeit implicitly and inchoately) by the adequacy position has immensely complexified the debate, opening up two additional front-lines: (1) alongside the original debate within the frame of “fair opportunity”; (2) there is now a second debate within the frame of “fair access”; and (3) finally, a third debate *across* the frames, as to what is the apt conception of the ends of education and the corresponding aims of educational equity.

Regarding these distinct lines of debate, we can at this stage adduce three germane points. First, *if* we accept the shift toward “access to development,” then within that frame we can resolve the second debate along the lines argued for in I.B above: proportionate priority is the most persuasive theory of fair access, against the rivals of equality and sufficiency. But, second, this of course does nothing to settle the debate between frames: the central criticism made by fair opportunity views against adequacy—namely, that it fails to attend to the positional aspects of educational advantage—applies equally to the proportionate priority view. And in the course of taking up that criticism, we also need to attend to the other side of that third debate, namely the criticism of fair opportunity views as failing to attend to the intrinsic goods of education. Finally, before attending to both criticisms—i.e., to the third debate as a whole, between fair opportunity and fair access views—there remains one final position to consider within the first debate, regarding what properly constitutes a fair opportunity to compete.

3. A Cautionary Parable: “Equal Chance to Succeed”

A final fair opportunity view radicalizes the “full, fair” view by insisting that it is *not* “talent and motivation” but *only* motivation that should play a role in the competition for grades—talent being unearned or a matter of luck, this leaves only effort or motivation as the sole truly deserving factor.⁵⁰ Going beyond its predecessor’s deference to “merit” as determined by a competitive process, this view urges that we reward only “desert.” Consequently, we should not only attempt to filter out the role of all non-meritorious factors such as the full, fair view counsels (at least in principle), so as to correct for any curricular or extra-curricular differences in advantage bestowed by parents or others upon students of similar skill and striving. Rather, we should go further and attempt to filter out or correct for all non-desert factors, so that the only factor relevant to determining educational success is how strenuously students strive, or how hard they work. Two equally striving students should, in other words, have “an equal chance to succeed.”

⁵⁰ See Weishart, *supra* note 1 at 493-98.

The most full-throated of the positions aiming to ensure a truly fair competitive process, this view can serve as a cautionary parable of the limits of this entire way of thinking about equity in education. Three points about this position bear drawing out.

First, its originating impetus comes in fact not from equality of opportunity, but from within debates about distributive justice. The view draws its inspiration from the “luck egalitarian” view within distributive justice, according to which all involuntary or unearned departures from equality (whether in welfare, resources, or capabilities) are, because a matter of luck, troubling from the perspective of equal concern in distribution.⁵¹ Within this camp, a consensus formed soon enough around “effort” as one key feature of persons that is not involuntary or unearned, and hence something for which individuals may reasonably be held responsible.⁵² The present view then picks up this conclusion from within distributive justice theory and runs with it here, arguing that since the only deserved source of disparity in educational success is differential effort, then only it should be taken into account as a matter of a fair competitive process in education.⁵³

And this brings us to a second point. Although the view sees itself—and is seen by others—as a species of distributive equity, it in fact continues directly in the line of fair opportunity views. Thus, not only does the position pay no heed to the criticisms facing its predecessor “full, fair” view (infeasibility and incursion into parental liberty), but it doubles-down and forges ahead, urging even more thorough-going corrections in the same vein. As such, it is then vulnerable not only to both of the objections facing its predecessor, but to even more strenuous versions of the same.

But, finally and most fundamentally, the fatal flaw with this view is not that its counsel faces more stringent versions of the concerns facing its predecessor, but that its counsel is simply unclear—indeed radically incoherent. What would it mean to eliminate the role of all factors except hard work in determining educational success, or in the competition for grades? Let us put aside not only the objections facing its predecessor—of the practicability and desirability of the required expenditures—but also the distinct problem facing this view, going to the informational difficulties involved in separating out the role of hard work or effort versus unearned ability. Put all that aside and just focus on the prescription itself: to give reign, freely and only, to hard work in determining success. How would that work? Suppose there are ten students in the class and all work equally hard—does each then just get an “A”? Those with higher unearned ability did, of

⁵¹ Leading works associated with luck egalitarianism include: Ronald Dworkin, *What is Equality? Part 1: Equality of Welfare*, 10 PHIL. & PUB. AFF. 185 (1981); Ronald Dworkin, *What is Equality? Part 2: Equality of Resources*, 10 PHIL. & PUB. AFF. 283 (1981); Richard J. Arneson, *Equality and Equal Opportunity for Welfare*, 56 PHIL. STUD. 77 (1989); G.A. Cohen, *On the Currency of Egalitarian Justice*, 99 ETHICS 906 (1989); and ERIC RAKOWSKI, *EQUAL JUSTICE* (1991). There is debate about whether Dworkin’s views are aptly so characterized, despite his work ostensibly launching this basic line of argument: see Anderson (1999), Scheffler (2003), Dworkin (2003).

⁵² Other aspects include prudent management of one’s affairs (including the handling of risk) and, more contentiously, which preferences or tastes to cultivate and pursue. For debate on the latter score, see Dworkin (1981a and 1981b); Cohen (1988); Rakowski (1991); Dworkin (2001); Cohen (2004).

⁵³ It bears emphasizing that it is the attempt to apply “luck egalitarian” views of *distributive justice* to the radically distinct context of educational *opportunity*, that is the subject of the criticisms that follow. None of these should be taken as criticisms of “luck egalitarian” views within distributive justice proper.

course, score higher on the requisite exams, but these now turn out to count for nothing, carrying no real information. Indeed, the “A” seems to carry no information regarding acquired skills and learning—only commendable effort. With the result that we have evacuated from the classroom the meaningful use of any metric of learning progress.

This should alarm not only those committed to the fair competitive process view, as we have eliminated the yardsticks of “merit” or “success” by which to differentiate the “winners” and “losers” such processes necessarily presuppose. It should also alarm those committed to the fair access to development view: without any metrics of learning progress or achievement, we simply have no idea who merits developmental priority. To be sure, each student’s “A” means they are each working commendably hard, but on the fair access view we also need some further information: How is each student’s development coming along? Who needs more teacher time and attention and further pedagogic aids to ensure their reading, math, etc. are progressing appropriately? In a nutshell, then, this view is a non-starter from the vantage of both frames: we have *neither* the criteria for educational “success” *nor* for educational “development.” In their stead, just a measure of “effort” standing alone, hanging in mid-air as a badge of... what?⁵⁴

The underlying trouble with “equal chance to succeed” is simply stated: it unthinkingly yokes norms of distributive equity onto frames of equality of opportunity. But one cannot simply take a position developed within the frame of fair access to substantive benefits—the luck egalitarian view, against which the present discussion has advanced no criticisms—and graft it onto the orthogonal frame of a fair competitive process and expect it to “take.” Superficially seeking to fuse what are two fundamentally distinct orientations, the result is radical incoherence.

III. THE CORE DEBATE: POSITIONAL VERSUS DEVELOPMENTAL FAIRNESS

Where does this leave us? Drawing together the distinct threads, three central points may be distilled. First, within the frame of distributive equity—or fair access to educational development seen as an intrinsically valuable good—the most persuasive view remains proportionate priority, as against its equality and adequacy rivals. Second, within the frame of opportunity—or a fair process of educational competition—the end of the line remains the full, fair opportunity view, which faces three pushbacks internal to this frame: its untenable demands on the public purse, its unattractive intrusions into parental liberty, and, what the luck-egalitarian view adds to the foregoing adequacy-originated criticisms, the point that its view of what is “fair” is unpersuasive if taken to

⁵⁴ Matters do not improve if we retained the use of tests scores, etc., as metrics of educational achievement or development and then adjusted them to reflect desert. This would land us in a distinct quagmire: suppose a high-skill student *H* can get an A putting in half the effort of one at medium-skill, *M*. Suppose *M* does not redouble their efforts but only works just as hard as *H*, to score a “raw” B. Does this then get adjusted up to an A? Or does *H*’s grade get adjusted down to a B? Does *M* get more teacher time and attention so that the same work translates into higher achievement? How much more time and attention? Whatever it takes to have the work translate into that achievement? That would seem to be what this view, focused as it is on “success,” would require. What if that is simply too costly—do we then proceed to an alternative strategy of “deserving down” by depriving *H* of any time and attention in the hope their performance drops? The incoherence of the aims should be plain.

mean that the results of its idealized competitive processes are “deserved”: even if the position’s ideals were fully implemented, all they would yield is some fairness-independent notion of “merit.”

Finally, there remains the debate taking place between these frames, consisting of two key points of contention: (a) one is the opportunity criticism of developmental views, of not attending to the positional dimension of education in their criteria for equitable access; (b) the other is the access criticism of opportunity views, of overlooking the intrinsic benefits of educational development in their zealous pursuit of removing unfair advantages. It is this pair of issues that must now occupy us, in the following form: does a distributive equity approach of *fair access* to educational development fail by not considering education’s positional dimensions, and thus require either supplementing or replacing by *fair opportunity*?

The crucial debate in educational equity, then, is (1) not about whether we should have a “fully fair” versus merely “adequate” competitive process, (2) nor about whether we should ensure “equal” versus “adequate” educational development. Rather it is (3) about whether our primary—or even sole—orienting aim in educational policy should be *positional fairness* or *developmental fairness*. If we adopt the positional fairness view, then the adequacy position is hardly plausible compared to its “full, fair” opportunity rival, even if the latter is not always achievable in practice. And, similarly, if we adopt the developmental fairness view, the equality position is hardly plausible, although here superior to both it and its adequacy rival is the proportionate priority view. But in either case, the main debate remains to be had: should we adopt full, fair equality of opportunity as our lodestone—and hence positional fairness as our aspiration—or pursue instead developmental fairness, in accord with proportionate priority?

Table 1 tabulates the central contrasts at issue, between a *meritocratic* versus a *democratic* conception of the purposes of education and aims of educational policy.

TABLE 1: MERITOCRATIC VERSUS DEMOCRATIC CONCEPTIONS OF K-12 EDUCATION

	Meritocratic	Democratic
Purpose of K-12 Education	Instrumental: equip students for market participation	Formative: shape students for life as persons and citizens
Aim of Educational Policy	Ensure a fair terrain of competition for grades	Ensure universal access to developmental goods
Aim of Educational Equity	Equality of Opportunity (Positional fairness)	Distributive Justice (Developmental fairness)
Relevant Ideal	Full, fair opportunity	Proportionate Priority

1. A Focal Case

To focus matters, consider again the Palo Alto/Rosemary example given above. To recall: Student *P* at public school Palo Alto has access to a very generous level of educational resources, when compared to all other public schools and indeed a good number of private ones. Nevertheless, student *R* at private school Rosemary has access to more. (Alternatively, we can imagine that *R* attends the same Palo Alto school as *P* and

thus has access to the same public educational resources, but that these are supplemented in the case of *R* but not *P* by various extra-curricular pedagogic activities funded by *R*'s parents.) Should this situation trouble us from the point of view of educational equity?

We take up the answer given by three views: (1) adequate access to development; (2) full, fair opportunity to compete; and (3) fair access to development in accord with proportionate priority.

The adequacy advocate replies as follows: "No, this should not trouble us. So long as *P* and *R* each have access to a decent level of educational development—as they clearly do here—the further disparities in access between them, above that threshold, should not disturb us." Notice that in fact this is too quick: to know whether *P* and *R* each have truly adequate access to development, we need to know not only their external resource bundles, but also their personal "conversion rates"—i.e., we need to know whether either has any learning disabilities requiring extra educational resources to access reasonably decent levels across the relevant areas of skills and learning. That this point is often overlooked reflects the centrality of differential-income disparities in the present debate. But on the developmental conception of education that an adequacy view must embrace on pain of incoherence, it is of course also necessary to attend to differential-skill disparities (even if these are not of concern on an instrumental conception). But, with this important qualification, we can let the adequacy answer stand.

To that answer a proponent of full, fair opportunity replies: "But that's too simple. What about the leg up *R* has over *P* in the competition for grades and college admission? To ensure that this competition is truly fair—i.e., that the only factors determining *R* and *P*'s respective chances for success is how talented and hard-working each is—we need to eliminate, by evening out, the role of any factor besides ability and effort and that surely includes the educational resources made available to each in and out of the classroom." How? One option is to up the public funding either of what happens inside Palo Alto High or what *P* can do on an extra-curricular level, until it matches what *R* has available. What if that is not fiscally feasible? Onto option two: place a cap on, first, what private schools can spend per-student at school (to equal what public schools can) and, second, on what parents themselves can spend on educationally beneficial activities and resources outside school. Even if the latter is thought too far an invasion into parental liberty, there remains no reason, at least in principle, not to curb the expenditures of private schools.

To be sure, none of the measures contemplated—increased public or decreased private school spending so as to equalize them, or limits on extra-curricular parental expenditures—currently has very good prospects of being pursued. But we can put aside these practical objections to focus on those of principle. These are fundamentally two-fold: (1) the single-minded pursuit of positional fairness for lower-income students indefensibly sidelines developmental fairness for all, in particular lower-skilled and those with disability; (2) moreover, "positional fairness" itself involves no coherent, defensible conception of fairness at all, once we fully internalize the delinking of "merit" from "desert" and, also, the deeply endogenous character of merit itself.

Taking these up in turn, we first ask: what happens under this ideal either to “average” students or those with disabilities? Well, runs the answer, they will of course have available the same formal resources and hence “chance to succeed” as every other student, but equally of course they will not score as high or, crucially, develop as well—and this not merely an implied aspect of the ideal, but its anticipated outcome, indeed its intended aim. The ideal’s entire point is to institute a truly fair system of academic competition, where those with the most ability and willingness to work hard “rise to the top.” The trouble is, once we understand that gaps in ability may be unearned (as may be those in willingness, as discussed below)—once, that is, we firmly delink the notions of “merit” at work in this ideal from any notions of “desert”—it seems difficult to justify an approach to educational policy that single-mindedly focuses on ensuring the achievement of those who “have” and not at all on the development of those who “have not.”

Put another way, in the standard comparison between “equality” versus “adequacy” views, the advantage of the former is thought to be that they are duly concerned with *disparities* across students, while the latter are unduly insensitive. But this is a one-sided view of each: “Equality” turns out to be full, fair opportunity, with its main concern being disparities between student “haves” and “have nots” in terms of income, as impairing a fair competitive basis. Disparities between “haves” and “have nots” along other dimensions—skills, striving, disability—seem not to concern it at all. While “adequacy” turns out to be focused on access to development and hence concerned with *all* unjustified disparities in development—whatever the source, at least once we make the above refinement—but only below the threshold, and with none above it.

In other words, the debate is not about which view more assiduously cares about disparities, but about which disparities along what dimensions from which sources should be cared about, and why and how. And the answers given by the three main positions under review are as follows: (a) full, fair opportunity cares *not* about disparities *but infirmities* in educational competition, with the one most catching its eye being the distorting role of family spending differentials on otherwise similarly-situated students in terms of talent and effort; (b) adequate access to development cares about unjustified disparities in educational development below a decent threshold of attainment, aiming to eliminate them all, while leaving unattended all above the threshold; and (c) equitable access to development per proportionate priority cares about *all* unjustified disparities, below and above any threshold, and seeks not to eliminate or even reduce them as somehow important for its own sake, but rather to give heightened concern to the development of those worse off as a matter of fairness (via comparative priority).

Thus the true debate here is not between “equality” and “adequacy” views but rather: (1) full, fair opportunity, with its concern for a fair process of educational competition leading to vigilance concerning positional (dis)advantages not traceable to talent or motivation; and (2) proportionate priority, with its concern for fair access to educational development leading to a focus on all unjustified disparities—whatever their source—in such development, seen as an intrinsically valuable good (rather than instrumentally, or in positional terms). The first criticizes the second for its disregard of

the positional aspects of educational success, and the second criticizes the first for its disregard of developmental disparities independent of the competitive process.

2. Full, Fair Opportunity to Compete

We first take up the criticism facing full, fair opportunity, namely that it leaves students with disability or other differential-skill sets (including “average” students) out in the cold. (We take up the criticism facing proportionate priority in section 3.) Defenders may reply in either of three ways: (1) they may accept the accuracy and force of the criticism and concede it requires a modification of their view; (2) they may accept the force of the criticism if accurate, but deny that it accurately applies to their view; or (3) they may accept the accuracy of the criticism, but deny its force.

First, defenders may simply accept the criticism’s validity and concede it requires a modification of their view of educational equity, by supplementing it with one focused on access to educational development as valuable in itself. So as to issue in a mixed view along following lines: (a) we need to ensure a fair process of educational competition, so that the only factors determining educational achievement are talent and motivation; and (b) we need to ensure fair access to educational development, so that all unjustified disparities in development are equitably redressed.

But such a hybrid view is not so much a mixed conception as an incoherent one. The way to ensure equitable access under is by prioritizing the expenditure of educational resources in terms of proportionate potentials for improvement in educational development (taking due account of any relevant factors of individual responsibility in student interests and efforts, as discussed below). Now, as it happens when we do so there is no foretelling what the resulting outcomes will be in terms of educational achievement or “academic success.” That depends on how student abilities, interests, and striving interact with the pedagogic materials at hand. Prioritization of such materials is, to be sure, regulated by the ideal of proportionate improvements, but that tells us little about what overall levels will result. In this way, proportionate priority may be said to have its own view of a fair educational process, one not defined in terms of outcomes: a fair process is one that pursues proportionate priority in improvements, resulting in whatever outcomes that follow.⁵⁵ Specifically, there is no reason to believe considerable disparities in educational achievement or academic success won’t remain. The point is that while achievement levels are not pre-judged, nor are they the focus of its equitable criteria.

And this brings us to the point of incoherence in this proposed mixed view: although one *can* simultaneously focus one’s equitable concern on prioritizing resources in accord with proportionate priority to those worse off in development, while still giving free reign to differential results in terms of achievement, one *cannot* simultaneously focus one’s equitable concern both on such prioritization and on ensuring that the only factors shaping achievement are talent and motivation. The point is not just that such a mixed view does not tell us how to prioritize in cases of conflict between the two aims, such as

⁵⁵ As such this view remains one of “pure procedural justice,” in Rawls’s sense. JOHN RAWLS, A THEORY OF JUSTICE 74-5 (1971 [2nd ed 1999]).

whether we should we direct scarce educational resources to redress the positional disadvantage of low-income but high-skill students, or the disparity in development facing medium-income but low-skill ones. Rather, the point runs deeper: every pursuit of the latter “gums up” the pure competitive process that is the ideal animating the former.⁵⁶

A second possible response is to accept the force of the criticism if accurate but to deny its applicability here, i.e., to reject that “full, fair” leaves students of low-to-average ability or with disability out in the cold. To be sure, as a default this view assumes a baseline yardstick of formal equality in the dollars spent per student, after which differential talent and motivation should shine through. But in determining the accuracy of this criticism, we need to look past this default and examine more closely what the full, fair view counsels as a matter of educational equity. Our aim, again, is to eliminate the role of any factors in educational success beside ability and effort. What other factors could there be? Clearly differential amounts of educational resources, which is the primary target of this view and the main topic of debate. But another factor may also be differences in the *character* of educational resources. For instance, should brail be made available or not? That depends on the view of “ability” or “talent” adopted by this position. Suppose that the average academic performance of blind students leaps forward with brail, well beyond anything sighted students would reap if the same resources were devoted to them. Advocates of full, fair opportunity would likely insist that their view counsels such “accommodation”—perhaps not even seeing it as an increase in the quantity of resources spend per students, so much as an adaptation of the “quality” or character of resources to make them more “appropriate” or “tailored” to individual needs.

This brings to the surface two additional aspects of this view. First, its starting picture is something like the following triangle of factors: (a) the traits of students—their abilities and motivations; (b) what students get from their families—not in terms of genes but, rather, resources in the first instance and, more expansively, cultural capital in the form of attitudes concerning priorities, discipline, etc.; and (c) what students get from the schooling environment—the quantity and quality or amount and character of pedagogic resources. And the view has two key components: (a) is thought simply to “belong” to the student, inhering in them as a kind of brute fact of their individuality or an exogenous feature of their person; and the role of educational equity is to ensure that any interference played by family factors under (b)—as either boosts or drags—are corrected for by the schooling environment, by way of compensating expenditures. But what the blind/brail example reveals is that at the slightest push, the door opens to a quite distinct view of how these factors interact: (b) and (c) do not only externally restrain or amplify exogenous (a), but may directly shape its internal constitution, as (a) is obviously endogenous to both. The “ability” of students without sight simply cannot be determined in abstraction from their interaction with a given pedagogic environment and its specific—homogenous versus tailored—resources. What this means is that there is no neutral set of homogenous resources, of which a formally equal dispensation can provide a starting baseline to which we then make adjustments in (c) based on what we observe regarding (b). We may need

⁵⁶ This is not to say other mixed views may not be more plausible. We will consider one such below, where the criticism facing the proportionate priority view’s neglect of positional disadvantage is proposed to be addressed by adding such disadvantage as an additional factor to be given weight, alongside the PPP.

to make further, (b)-independent, adjustments, based on some distinct assessment of academic “need,” “merit” or “potential.”

Second, in making all such adjustments to formal equality in resources, a strong gravitational pull will no doubt be exerted by one yardstick: efficiency. That is, we will look to see whether any such departures would produce a “greater bang for the buck” than any alternative, in terms of yielding higher overall levels of achievement. And this reveals a kind of natural progression of the full, fair view in three stages: (1) First, it is a principle of purely formal equality in per dollar of educational resources spent on each student. (2) Next, the principle may require tailoring to account for extra-curricular disparities in resources per student, to be corrected by the amounts spent inside the schools. Here where we need carefully to notice two things. First, why? What is the criterion of equity that guides such corrections? It remains a purely procedural one: the need to give unfettered reign to exogenous talent and motivation in determining success. And, second, there is a large chasm between this purely formal, procedural criterion and the one adopted in the next stage, that of efficiency. (3) Finally, we adopt the efficiency norm to guide our choice of those further modifications deemed potentially required in light of how student traits interact with a baseline of educational rules and resources that was initially naturalized but is now seen to be subject to social modification.

At this juncture we need to ask: why should only those adjustments to formal equality or naturalized competition be made that can be justified in terms of their bang for the buck in improving overall achievement across students? What is the appeal of the norm of “to each according to marginal gains in performance”? Why not pursue further gains as required by equity, in terms of priority to those who remain at overall lower levels of achievement or development? The forthcoming reply will be that this is because the present view is one not of substantive equity but rather a procedural one, of ensuring a proper competitive system for realizing success according to merit. With “merit” now specified not in terms of the free play of exogenous talent and motivation under formal equality of resources, but as the realization of maximal overall academic performance or achievement, under efficiency-guided expenditures of tailored educational resources.

But in that case, we must note that this reply has left the posture of a response that accepts the force of the criticism but challenges its accuracy—namely, that full, fair inequitably ignores disparities in educational develop for students at lower skill levels or with disability. Rather, it has shifted gears entirely to the distinct third response, which is to accept the accuracy of the criticism but to deny its force. The reply now is to say “So what? Yes we do not equitably attend to the educational development of all students, seen as an intrinsically valuable good. This is because we hold fast to our view that the primary, even sole, aim of educational equity is to ensure a fair competitive process resulting in merit, as measured by educational achievement.”

To assess the persuasiveness of this response, we need to focus our full attention on the question of what makes this process a “fair” one? Recall three points already adduced against it having any fairness properties. First, we must never lose sight of the point that even in its most pristine form, “to each according to talent” is *not* a fairness

view at all, given the unearned character of starting abilities. Once, that is, we helpfully delink it from “desert,” we need some independent justification of “merit.” What is the appeal of merit? Indeed, what *is* merit? Once we recall the unavailability of any formal equality or naturalized competition justifications for this process—on account of factoring in the effect of family environment and schooling choices on student performance—we realize that “merit” amounts to something like: performing well according to specified criteria of educational achievement in zones of learning and skills, under some given dispensation of educational resources adjusted and modified in quantity and quality across students to reap maximal improvements at the margin. But in that case we simply have to repeat the question: “and *again*, what’s so great about *that*?”

To appreciate the full skeptical force of that question, we need to underscore the massive endogeneity effects in the educational realm. Suppose student A has access to the same resources at school as student B, with neither getting any extra-curricular aids from their parents. But the family environment and neighborhood of the one is much less conducive to the sorts of aspirations and discipline needed for applying oneself in school. Is this just part of the brute talent and motivation of the student, outside of correction, or a candidate for redress, owing to it being shaped by the surrounding, unchosen, familial and social context—and hence meriting “positional” correction through expenditure of school resources? A point long familiar in educational policy, its destructive implications for *any* instrumental or “fair competition” view of education merit continued emphasis.

Driving home these endogeneity considerations are two final points that reinforce, first, the decoupling of merit from desert and, second, the implausibility of any stand-alone conception of merit as the driver of educational policy.

(1) *Skills, striving, and the Aristotelian principle.* Pace the “equal chance to succeed” view, it is not just talent that is undeserved while motivation is earned: motivation itself is endogenous to, or partly shaped by, talent or skill level.⁵⁷ In accord with what we can, following Rawls, call the “Aristotelian principle,” one’s desire to strive at something increases in tandem with one’s abilities, as persons enjoy the exercise and development of their capacities as ends in themselves.⁵⁸ This has a two-fold implication here: (a) first, to the extent that initial skill levels are unearned, they will come with an unearned bonus in motivation, so as to snowball the unfairness of strict deference to “merit”; and (b) second, to the extent that students are equitably (or not) enabled to acquire skills and learning, following in tandem will be a boost or drag in striving—and so even as a matter of pure desert we cannot focus single-mindedly on differential effort in justifying disparities: it may stem from undeserved factors that were not equitably corrected for earlier. Moreover, “talent and motivation” is likely better understood as “talent, *outlook*, and motivation.” Students may vary not only in their talent or aptitude

⁵⁷ Indeed, some might wish to go further and argue that the motivation of children is so highly shaped by their learning environment, and hence endogenous to educational policies, that, at least for young students, there is little ground for factoring in disparities in student effort as “deserved” or for which students are to be held responsible. We do not need to settle that issue for the following points to hold.

⁵⁸ RAWLS, *supra* note 55 at 374 (“The Aristotelian principle runs as follows: other things equal, human beings enjoy the exercise of their realized capacities (their innate or trained abilities), and this enjoyment increases the more the capacity is realized, or the greater its complexity.”)

for learning, and their motivation or effort for learning, but also in their *outlook*, both their general ambitions and their specific interests or priorities in learning—e.g., athletics versus shop versus math versus languages. And at least any initial variance in this respect will likely be strongly affected by the values, role models, etc. transmitted by the family. And there would seem to be no reason why education should not attempt to check against inherited differences in these as much as in aptitude. So as to render further unattractive and even workable the heavy reliance on exogenous “merit” or endogenized “efficiency” at work in the notion of “positional fairness” that underlies full, fair opportunity.

(2) *The good(s) of education and the social construction of “merit.”* Finally, it is not just that “merit”—as valuable traits or skills—is the product of many unearned factors mixed in with some deserved striving. It is also that what counts as “valuable” at any given time depends on an entire, historically-specific, background infrastructure. The value of extraordinary height is radically different before and after the invention of basketball. Or of martial courage before and after invention of gunpowder. Or the skills of a pilot before and after the invention of autopilot. And so on. What personal traits and dispositions are socially valuable depends on an historically-specific ensemble of social and material conditions for which no individual may be plausibly blamed or credited. All of which is to suggest that we should be wary of advantaging or disadvantaging students in terms of their personal formative development (the good(s) of education) purely on the grounds of the instrumental social value of specific traits and dispositions (“merit”) today.

In sum, in seeking to address the first fundamental objection it faces—namely, that its zealous pursuit of a fair competitive process for educational *success* for a few unduly ignores inequitable disparities in educational *development* for all—the responses offered by the full, fair opportunity view open it up to a second fundamental objection, namely that it contains no coherent, defensible notion of “fairness” to begin with.

3. Universal Access to Development

We turn at last to the objection facing proportionate priority: Supposing we have decided to adopt a developmental conception of education, and proportionate priority as our view of equitable access to it, is there anything left to the criticism that such an approach fails to give due regard to positional aspects of educational advantage? And, if so, how should it be modified to take such aspects into account? Recall the positional fairness objection: a striving, medium-to-high-skill student at Palo Alto is disadvantaged in the competition for grades and college admissions vis-à-vis a similar student with greater educational resources at Rosemary, a disadvantage that an “adequate access to development” approaches simply ignores, it being satisfied that both are already above a decent basic threshold of attainment. The objection, by contrast, says we should try to up the Palo Alto resources and, failing that, decrease those at Rosemary, to even out the race.

To this, the proportionate priority view gives a three-fold reply: (1) First, unlike adequacy views, its approach to equitable access to development does not have any threshold after which it ceases to be concerned with disparities, and hence it would *not* be indifferent to the disparity between these students. (2) Second, however, unlike

opportunity views, *its* concern here is precisely with that—a *disparity* with respect to access to development—and *not* a disadvantage in a competitive process, meaning: (a) with respect to upping public school spending, comparative priority would issue in the exact same counsel as “fair opportunity”: since each student would experience the same proportional gain, we would increase those for the lower-resourced one until it equaled that of the higher-resourced one (taking these two in strict isolation, raising an issue which goes to the third point, shortly); (b) similarly if there was a pot of lesser resources to divvy up between them, each would get an equal share; (c) but if increasing public spending was off the table, proportionate priority would *not* counsel depriving the better-resourced student of their extra resources simply for the sake of evening them out—that would be precisely a case of “leveling down” that has no merit on a view concerned with not equality for its own sake, but priority to improving the worse off as a matter of fairness.⁵⁹ (3) Third, and finally, however, proportionate priority would not be single-mindedly focused on this disparity in isolation from others, such as those between both these students and others at lower-skill levels: between all these who should greater concern in the queue for resources is a matter of comparative potential gains across *all* such students.

In other words, positional fairness targets the role of *non-merit-based barriers to opportunity to compete*, which here would require (following full, fair equality of opportunity) leveling the educational expenditures across the two students to realize a fully level playing field. Developmental fairness, meanwhile, targets *involuntary disparities in access to development*, which here would require (following proportionate priority) giving priority in expenditures to the lower-income over higher-income student commensurate to their comparative potentials as a proportion of their comparative levels. Since these students have the same potentials, resources would continue to flow to the lower-income one until their levels were equalized. The key difference between the two positions is that the proportionate priority view would not single-mindedly focus on such income-based disparities in isolation from others, such as disparities between both these students and others at lower-ability levels. Who should receive greater concern in the queue between all of these is a matter of comparative priority across *all* such students. Thus, *while as between these two students*, proportionate priority provides the same counsel as equality of opportunity in cases of increased spending—so that ensuring equitable access comes to the same thing as equalizing opportunity in same-ability, different-income cases—the *overall* pattern of resource distribution and educational development across all students would still be markedly different under the two ideals.

What remains, then, of the difference between full, fair opportunity and proportionate priority in this case is two-fold: (1) proportionate priority redresses, while full, fair opportunity ignores, all other disparities than those between similarly-skilled but differently-resourced students; and (2) with respect to that specific case, proportionate priority handles it as a disparity in access to educational development, viewing that as an

⁵⁹ This is not to say proportionate priority would be indifferent to the use of such private expenditures: their existence and amount may well be a matter of great policy concern in terms of general income equity or taxation for purposes of educational policy. The point is that if for some reasons these earnings were completely out of reach for redistribution, then proportionate priority would not see any gain in simply prohibiting their expenditure on well-off students.

intrinsically valuable good, while full, fair opportunity handles it as an infirmity in the competitive process for educational success, viewing that as an instrumentally valuable positional good, with the result that while their counsel converges in cases of increasing spending, it diverges in the case of decreasing spending.⁶⁰

In respect of this last difference, two points are germane. First it seems a clear virtue of proportionate priority as against full, fair opportunity that it does not counsel leveling down by capping private spending. While the availability and extent of such expenditures may well be a matter of policy concern for this view, if nothing effective by way of equitable redistribution can be pursued, there is nothing to say in favor of simply forcing the well-off to divert funding from their children's education to some other pursuit of theirs. It bears noting in this regard that even the strongest advocates of full, fair opportunity shrink from embracing this implication of their view, via an ad-hoc limitation on the pursuit of positional fairness for the sake of "parental liberty."⁶¹ On the present view, however, it is not so much parental liberty that is at stake—if the funds required to make such "liberty" effective should and could be equitably and effectively taxed and redistributed, then there is no distinct worry—but, rather, that nothing good is to be said for simply lowering educational development of well-off students. Or, more precisely, something quite bad is to be said in this regard: we are imposing a harm on better-off students for no corresponding gain for anyone else, simply for the sake of greater equality for its own sake. And of course the fundamental premise of proportionate priority is precisely to reject this "telic equality" notion, of sameness as valuable for its own sake.

Which brings us to a second point. To reject telic equality is to say that in matters of distribution, concerning substantive benefits, equality is not *intrinsically* valuable. It is *not* to say that equality may never be *instrumentally* important, as it may be in the cases of, for instance, effects on "relative deprivation" or on purchasing power. And so we come to a final question: even if we reject any intrinsic value to lowering the educational development of better-off students, should we nevertheless endorse it on grounds of its instrumental value, in terms of bettering the positional situation of worse-off students in the competition for grades and admissions and jobs?

We should first note that in theory there is nothing to stop us from doing this: there is no conceptual problem or practical difficulty in adding to the comparative priority analysis, of proportionate improvements over levels, some further "weighted factor" representing the instrumental or positional value of equalizing itself. This then illustrates another advantage of proportionate priority over its rivals: grounded in a clear conceptual and normative foundation, it is able to accommodate additional considerations from the outside, unlike the full, fair view, which is *not* able simultaneously to pursue its aims and accommodate equitable access to development (or unlike the "equal chance to succeed" view, with its incoherent prescriptions reflecting its inchoate foundations).

⁶⁰ It bears emphasizing that these are the differences that remain in the restricted context of this case; there also remain the differences in how proportionate priority would handle endogeneity problems concerning "merit" that afflict the full, fair opportunity view.

⁶¹ Kolski & Reich, *supra* note 1 at . See generally Weishart, *supra* note 1 at 509-512.

But *should* we fold in this additional consideration? Two related reasons combine to counsel “no.” First, even full-throated advocates of full, fair opportunity shrink from the implication of restricting parental expenditures on their children’s educational development. This likely reflects an implicit recognition on their part of the intrinsic, developmental value of education, as something not to be easily sacrificed on the altar of its instrumental, positional aspect. Second, a further reinforcement here may be found if we change our case and consider that of students who are better off not on the dimension of income but ability: do we now want to apply a discount to the gains realizable by “gifted” students, for the sake of the instrumental value of educational equality? Unlikely. Indeed, the opposite view is the one commonly taken, and put into practice in the form of supplemental programs for such gifted students—a practice that is likely best justified, upon reflection, precisely on proportionate priority grounds: educational development is an intrinsically valuable good, to which all should have as much access as is possible and fair, and when gifted students stand to reap greater proportional gains (over their already-high levels) than others from added resources, it is only fair that they should receive them.

CONCLUSION

Three propositions form the heart of the present Article. First, underlying the various, often misfired, debates in educational policy, perhaps the most fundamental one concerns which of the following should be our driving conception of K-12 education: (1) an *instrumental* view that sees such education as a terrain of competition for grades and other metrics of educational success, with the corresponding aim of educational equity to be to ensure a *fair competitive process*; or (2) a *developmental* view that sees such education as a terrain for forming persons and citizens, with the corresponding aim of educational equity to be to ensure *fair universal access* to this developmental good.

Second, *if* we adopt the developmental frame and its corresponding distributive approach to educational equity, then the most compelling commitment of distributive equity in educational policy is *fairness as a matter of comparative priority* (as against its alternatives of equality, sufficiency, and non-comparative priority). This commitment issues in a principle, that of proportionate priority, which better resolves the full range of cases—more systematically and persuasively—than any rival distributive view.

Finally, we *should* adopt the developmental frame, and take as our controlling aim in educational equity to be that of ensuring distributively fair access to K-12 education as an intrinsically valuable good. Doing so, and hence pursuing *developmental fairness* in accord with proportionate priority, leaves little to nothing left for the pursuit of positional fairness in accord with full, fair opportunity. The reverse, however, does not hold.